

**CHAPTER cxi.**

An Act to confirm certain Provisional Orders of the Local Government Board relating to Milton - next - Sittingbourne Sittingbourne and Milton (Rural) and the Enfield and Edmonton Joint Hospital District.

A.D. 1905.

[4th August 1905.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders
in schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 17) Act 1905.

Short title.

A.D. 1905.

SCHEDULE.

*Milton and
Sittingbourne
Order.*

URBAN DISTRICTS OF MILTON-NEXT-SITTINGBOURNE
AND SITTINGBOURNE

AND

RURAL DISTRICT OF MILTON.

*Provisional Order for Union of Districts under Section 286 of the
Public Health Act 1875.*

To the Urban District Councils of Milton-next-Sittingbourne and
Sittingbourne; —

To the Rural District Council of Milton; —

And to all others whom it may concern.

38 & 39 Vict.
c. 55.

WHEREAS the district councils named in column 2 of the Schedule to this Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule and those districts are situated wholly within the County of Kent;

And whereas it has been represented to Us the Local Government Board that it would be for the advantage of the said districts that a Medical Officer of Health should be appointed for those districts and We having considered the said representation gave to each of the said district councils the notices required by Section 286 of the said Act of Our intention to issue an order uniting the said districts for the purpose of appointing a Medical Officer of Health;

And whereas notice of objection under the said section has been received by Us within the time fixed by the said section from the Urban District Council of Milton-next-Sittingbourne being one of the district councils above referred to and consequently their district may be included in the Union by a Provisional Order but not otherwise;

Provisional Orders Confirmation (No. 17) Act, 1905.

Now therefore in pursuance of the powers given to Us by Section 286 of the said Act and by any other Statutes in that behalf We do hereby order as follows viz. :—

A.D. 1905.

*Milton and
Sittingbourne
Order.*

Definitions.

Art. I. In this Order—

- (1) The expression "the appointed day" means the date of the Act of Parliament confirming this Order ;
- (2) The expression "the Schedule" means the Schedule to this Order ;
- (3) The expression "the Act" means the Public Health Act 1875 ;
- (4) The expression "Constituent District" means a district named in column 1 of the Schedule and the expression "Constituent Districts" means all the districts so named ;
- (5) The expression "Constituent Authority" means a district council named in column 2 of the Schedule and the expression "Constituent Authorities" means all the district councils so named.

Art. II. This Order shall come into operation from and after the appointed day.

Commence-
ment of Order.

Art. III. The Constituent Districts shall be united for the purpose of appointing a Medical Officer of Health and a Joint Committee representing the Constituent Authorities shall be constituted in pursuance and for the purposes of this Order.

Union of
Districts.

Art. IV. The Joint Committee shall consist of three ex-officio and nine elective members.

Constitution of
Joint Committee.

Art. V.—(1) The ex-officio members of the Joint Committee shall be the persons described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities.

Ex-officio and
elective
members.

(2) The number of members of the Joint Committee to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members.

Number and
qualification
of elective
members.

Art. VI. The first election of members of the Joint Committee shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority :

Date of first
election.

Provided that if any of the Constituent Authorities fail to elect members of the Joint Committee within the time aforesaid the members of the Joint Committee actually elected shall together with the ex-officio members act as the Joint Committee.

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Sittingbourne
Order.*Notification to
Local Govern-
ment Board of
members first
elected.Tenure of
office of mem-
bers.

Art. VII. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Committee.

Art. VIII. An elective member of the Joint Committee shall continue in office until the expiration of the period for which he was elected a member of the Joint Committee or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Committee whichever shall first happen :

Provided that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall be re-eligible as a member of the Joint Committee if at the time of re-election he is qualified to be so re-elected.

Supply of
vacancies.

Art. IX. Any vacancy occurring amongst the elective members of the Joint Committee by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy occurs at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority and the clerk shall forthwith notify in writing to the clerk to the Joint Committee the names address and occupation of the person elected to fill the said vacancy No such vacancy in the Joint Committee shall invalidate their proceedings.

Meetings.

Art. X.—(1) The time and place of holding the first meeting of the Joint Committee shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Committee shall be held at such times and places as the Joint Committee may appoint and at all meetings of the Joint Committee four members shall constitute a quorum.

(2) An extraordinary meeting shall be summoned by the clerk to the Joint Committee when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Committee.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at the extraordinary meeting.

(4) Notices of all meetings of the Joint Committee shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Committee three clear days before the day of meeting or at such earlier time as the Joint Committee direct.

Appointment
and remunera-
tion of officers.

Art. XI. The Joint Committee shall at their first meeting or at an adjournment thereof appoint a chairman and a clerk.

[5 EDW. 7.] *Local Government Board's* [Ch. cxi.]
Provisional Orders Confirmation (No. 17) Act, 1905.

The Joint Committee may pay the clerk such reasonable remuneration as they deem expedient subject to the approval of the Local Government Board and he shall be removable by the Joint Committee at their pleasure.

A.D. 1905.

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Order.*

Art. XII. Any vacancy in the office of chairman or clerk shall be filled up within six weeks at a meeting to be called by the clerk or chairman of which at least fourteen days' notice shall be given to each member or at a meeting held by adjournment from the meeting to be called as aforesaid.

Vacation of
office by chair-
man and clerk
&c.

If the office of chairman be vacant or if the chairman be not present at any meeting of the committee the members of the committee present may choose one of their number to preside.

Every question at any meeting shall be determined by a majority of the votes of the members present and voting on the question and in the case of an equality of votes on any question the presiding chairman may give a casting vote.

Art. XIII. The clerk to the Joint Committee shall punctually keep minutes of the proceedings at every meeting of the Joint Committee and shall enter the said minutes in a book and shall submit the same so entered to the presiding chairman at the succeeding meeting for signature and shall obey all lawful directions of the Joint Committee with reference to his office.

Minutes of
proceedings.

Art. XIV. The Joint Committee may at their first meeting consider and shall at the end of their second meeting submit to the Local Government Board proposals with respect to the period for which a Medical Officer of Health should be first appointed and the salary or remuneration to be assigned to him and the period for which the Medical Officer of Health shall be appointed and the salary or remuneration to be assigned to him shall be determined by the Local Government Board after consideration of the proposals submitted to them by the Joint Committee. Every such determination shall remain in force until it is superseded by a subsequent determination and while in force shall regulate the terms and conditions of every appointment which the Joint Committee may make to the office of Medical Officer of Health.

Proposals.

Art. XV. The Joint Committee shall proceed to the appointment of a Medical Officer of Health so soon as the determination of the Local Government Board with regard to the period of appointment and the salary or remuneration has been communicated to the Joint Committee and the terms and conditions of the appointment to be made by the Joint Committee shall accord in all respects with the determination as aforesaid.

Appointment
of Medical
Officer of
Health.

Art. XVI. Before any appointment is made an advertisement giving notice of the day fixed for the consideration of the matter by the Joint Committee shall be inserted by direction of the Joint Committee in some public newspaper or newspapers circulating in the Constituent Districts at least seven days before that day.

Notice of
appointment.

[Ch. cxi.] *Local Government Board's* [5 EDW. 7.]
Provisional Orders Confirmation (No. 17) Act, 1905.

A.D. 1905.

—
*Milton and
 Sittingbourne
 Order.*
 Conditions.

Art. XVII. No person shall be appointed Medical Officer of Health who does not agree to give three months' notice previous to resigning the office or to forfeit such sum as may be agreed upon as liquidated damages.

Report to Local
 Government
 Board.

Art. XVIII. The appointment shall within seven days after it is made be reported to the Local Government Board by the clerk to the Joint Committee.

Tenure of
 office.

Art. XIX. The Medical Officer of Health shall continue to hold office for the period determined by the Local Government Board or until he resign by notice in writing to the clerk to the Joint Committee or die or be dismissed by the Joint Committee with the assent of the Local Government Board or be removed by them or be proved to be insane by evidence which they may deem sufficient.

Appointment
 of successor.

Art. XX. Upon the occurrence of a vacancy in the office of Medical Officer of Health the Joint Committee shall proceed to make a fresh appointment which shall be reported to the Local Government Board as required by this Order in reference to the first appointment and except where otherwise expressly provided the provisions of this Order with respect to the first appointment shall with the necessary modifications apply to the proceedings in connexion with every subsequent appointment to the office of Medical Officer of Health. Provided that if the Joint Committee deem it advisable that the vacancy should not be filled up forthwith they may appoint a person to act temporarily subject to the approval of the Local Government Board.

Provision in
 anticipation of
 vacancy.

Art. XXI. If a vacancy be about to occur on notice given by the Medical Officer of Health of an intended resignation to take effect on a future day or in the case of an officer who holds his office for a specified term by the term coming to an end the Joint Committee may provide for the continuance of the officer or may appoint his successor at any time subsequent to the giving of the notice or within three calendar months next before the expiration of the term.

Continuance
 in office.

Art. XXII. If in the case of a Medical Officer of Health who has been appointed for a specified term the Joint Committee either before or within a reasonable time after the determination of his appointment should desire to renew his appointment for a further term or otherwise in conformity with the provisions of this Order and no fresh arrangement should be proposed with respect to the terms of the appointment it shall not be necessary for that purpose that there should be compliance with the requirements of Articles XIV. XV. and XVI. of this Order but it shall be sufficient if the Joint Committee at a meeting held after notice given at one of their two ordinary meetings next preceding the said meeting pass a resolution renewing the appointment accordingly and the Local Government Board sanction that resolution. Provided that if the Joint Committee desire to make any fresh

arrangement with respect to the terms of the appointment Articles XIV. and XV. shall apply with the necessary modifications.

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 Order.*

Art. XXIII. The salary of the Medical Officer of Health and his expenses as examined and allowed by the Joint Committee shall be paid by the Constituent Authorities.

Payment of
 salary.

Art. XXIV. If any officer appointed under this Order be at any time prevented by sickness or accident or other sufficient reason from performing his duties the Joint Committee may appoint a legally qualified medical practitioner to act as his temporary substitute and may pay the temporary substitute a reasonable compensation for his services and it shall not be necessary in any such case that the foregoing Articles of this Order should be complied with nor shall the approval of the Local Government Board be required to any such appointment but no compensation shall be paid in any such case for a longer period than six weeks unless their consent be first obtained Every such appointment shall be reported to the Local Government Board so soon as the same has been made.

Appointment
 of substitute.

Art. XXV. The provisions contained in the two General Orders of the Local Government Board dated the Twenty-third day of March One thousand eight hundred and ninety-one issued to Urban and Rural Sanitary Authorities respectively and in any General Order issued by the Local Government Board after the appointed day in substitution for or in amendment or extension of the first-mentioned General Orders shall except so far as those provisions may be inconsistent with this Order apply to the qualification duties and remuneration of the Medical Officer of Health to be appointed in pursuance of this Order and that officer shall also submit to the Joint Committee copies of every general and special report which he makes in regard to the whole or any part of his district In matters not specifically provided for in the said General Orders or in this Order the Medical Officer of Health shall observe and execute any instructions issued by the Local Government Board and the lawful orders and directions of the Joint Committee applicable to his office.

Duties of
 Medical Officer
 of Health.

Art. XXVI. The clerk shall at the end of each quarter make out a statement showing the remuneration due to him in respect of that quarter as well as the other expenses of the Joint Committee incurred during the same period and that statement shall be submitted to the Joint Committee.

Accounts.

As soon as conveniently may be after the examination of the statement by the Joint Committee the clerk shall apply to the several Constituent Authorities for payment of the amount due from each Constituent Authority and payment shall be made by them accordingly.

A copy of the statement of the accounts of the Joint Committee shall be sent by the Joint Committee to each Constituent Authority.

Art. XXVII. The salary and expenses of the Medical Officer of Health as well as the remuneration of the clerk to the Joint Committee and the

Apportionment
 of charge of
 salary &c.

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Order.*

expenses referred to in Articles XXIV. and XXVI. shall unless the Local Government Board otherwise by order direct be borne by each Constituent Authority in the proportion which the rateable value of the Constituent District bears to the aggregate rateable value of the several Constituent Districts and for the purposes of this Article the rateable value shall in each case be that shown by the valuation lists in force on the Twenty-fifth day of March next preceding the date at which a payment becomes due.

Power of Local
Government
Board to adapt
provisions of
Order on altera-
tions of Con-
stituent Dis-
tricts.

Art. XXVIII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough then and in every such case the Local Government Board may by order to be published as they shall direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

Settlement of
differences.

Art. XXIX.—(1) If any difficulty arises with respect to any appointment of members of the Joint Committee or to any meeting or proceedings of the Joint Committee or any appointment of a Medical Officer of Health by the Joint Committee the Local Government Board may by order make or validate any appointment or do anything which appears to them to be necessary or expedient for the proper constitution of the Joint Committee for giving full effect to their proceedings or for facilitating the appointment of the Medical Officer of Health and the Local Government Board may also upon the application of the Joint Committee or of a Constituent Authority make any such order as appears to the Local Government Board to be necessary for bringing this Order into full operation.

(2) If any question or difference arises as to the interpretation of this Order or as to the powers duties and proceedings of the Joint Committee or of a Constituent Authority for the purposes of this Order or as to any other act matter or thing under this Order the said question or difference may on the application of the Joint Committee or of a Constituent Authority be referred to the decision of the Local Government Board and their decision shall be final and conclusive.

(3) Every order made by the Local Government Board in pursuance of this Article may modify any provision of this Order so far as appears to the Local Government Board to be necessary and shall have effect as if the order formed part of this Order.

Short title.

Art. XXX. This Order may be cited as the Milton and Sittingbourne (Medical Officer of Health) Order 1905.

[5 EDW. 7.] *Local Government Board's* [Ch. cxi.]
Provisional Orders Confirmation (No. 17) Act, 1905.

The SCHEDULE above referred to.

A.D. 1905.
*Milton and
Sittingbourne
Order.*

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Urban District of Milton-next-Sittingbourne.	The Urban District Council of Milton-next-Sittingbourne.	1	The Chairman of the District Council.	2
The Urban District of Sittingbourne.	The Urban District Council of Sittingbourne.	1	The Chairman of the District Council.	2
The Rural District of Milton.	The Rural District Council of Milton.	1	The Chairman of the Rural District Council or in case of his being an ex-officio member elsewhere described in this schedule then the Vice-Chairman of the Rural District Council.	5

Given under the Seal of Office of the Local Government Board this
Twenty-fourth day of May One thousand nine hundred and five.
(L.S.) G. W. BALFOUR President.
 S. B. PROVIS Secretary.

ENFIELD AND EDMONTON JOINT HOSPITAL DISTRICT.
*Provisional Order for forming a United District under Section 279
of the Public Health Act 1875.*

*Enfield and
Edmonton
Order.*

To the Urban District Council of Edmonton ; —
To the Urban District Council of Enfield ; —
And to all others whom it may concern.

WHEREAS the district councils named in column 2 of the Schedule to this Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 279 of the said Act and by any other Statutes in that behalf do hereby order as follows (that is to say) :—

Art. I. In this Order —

Definitions.

- (1) The expression "the appointed day" means the date of the Act of Parliament confirming this Order ;
- (2) The expression "the Schedule" means the Schedule to this Order ;

[Ch. cxi.] *Local Government Board's* [5 Edw. 7.]
Provisional Orders Confirmation (No. 17) Act, 1905.

A. D. 1905.

*Enfield and
Edmonton
Order.*

- (3) The expression "the Act" means the Public Health Act 1875;
- (4) The expression "Constituent District" means a district named in column 1 of the Schedule and the expression "Constituent Districts" means both the districts so named;
- (5) The expression "Constituent Authority" means a district council named in column 2 of the Schedule and the expression "Constituent Authorities" means both the district councils so named;
- (6) The expression "the Joint Board" means the governing body of the United District to be formed in pursuance of this Order.

Commence-
ment of Order.

Art. II. This Order shall come into operation from and after the appointed day.

Formation of
district.

Art. III. The Constituent Districts shall be formed into a United District to be called the Enfield and Edmonton Joint Hospital District for the purposes of the provision maintenance and management for the use of the inhabitants of the Constituent Districts of a hospital or hospitals for the reception of cases of infectious disease other than small-pox.

Constitution
of governing
body.

Art. IV. The Joint Board shall consist of two ex-officio and six elective members and shall be called the Enfield and Edmonton Joint Hospital Board.

Ex-officio and
elective
members.

Art. V. The ex-officio members shall be the persons described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities.

Number and
qualification
of elective
members.

Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members.

Disqualifica-
tions for
members.
56 & 57 Vict.
c. 73.

Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board.

Date of first
election.

Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of the meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority.

Notification to
Local Govern-
ment Board of
members first
elected.

Art. IX. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board.

Tenure of
office of
members.

Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the

Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen :

A.D. 1905.

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Order.*

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

Art. XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority and the clerk shall forthwith notify in writing to the clerk to the Joint Board the names address and occupation of the person elected to fill the said vacancy.

Supply of
vacancies.

Art. XII.—(1) The time and place of holding the first meeting of the Joint Board shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Board shall be held at such times and places as the Joint Board may appoint and at all meetings of the Joint Board three members shall constitute a quorum.

Meetings.

(2) An extraordinary meeting shall be summoned by the clerk to the Joint Board when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at the extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Board one clear day before the day of meeting or at such earlier time as the Joint Board direct.

(5) The Joint Board may appoint committees consisting of members of the Joint Board for the exercise of any powers which in the opinion of the Joint Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Joint Board be submitted to the Joint Board for approval Provided that a committee so appointed shall in no case be authorised to borrow money or to issue any precept for contributions or to enter into any contract and any such committee shall be

Committees.

A.D. 1905.

*Enfield and
Edmonton
Order.*Appointment
and remunera-
tion of officers.

subject to the provisions of Part IV. of the First Schedule to the Local Government Act 1894 so far as they are applicable.

Art. XIII. The Joint Board shall at their first meeting or at an adjournment thereof and thereafter as occasion requires appoint a chairman (who shall subject to the provisions of Articles VII. and X. of this Order continue chairman for such period not exceeding three years as may be determined by the Joint Board at the time of his appointment) a treasurer and a clerk and they may appoint one or more medical officers who shall be registered medical practitioners and such other officers and servants as they think requisite. The Joint Board may pay their treasurer clerk medical officers and other officers and servants such reasonable remuneration as they deem expedient and every such treasurer clerk medical officer and other officer and servant shall be removable by the Joint Board at their pleasure.

Mode of
admission into
hospitals.

Art. XIV.—(1) Persons shall be admitted into a hospital provided by the Joint Board in any of the following modes and not otherwise except with the consent of the Constituent Authorities viz.,—

- (a) By an order of the Joint Board or of a Constituent Authority ;
- (b) By an order of a medical officer of health of a Constituent Authority ;
- (c) By an order of a medical officer appointed by the Joint Board ;
- (d) By an order of a justice made under the provisions of Section 124 of the Act with the consent required by that section.

(2) If the board of guardians of the Edmonton Union and the Joint Board agree for the reception into the hospital of persons in the receipt of relief from that board of guardians any such person may be admitted into the hospital in the manner and on the terms prescribed in the agreement.

Powers rights
duties &c. of
Joint Board.

Art. XV. For the purposes of this Order the following sections of the Act the Public Health (Officers) Act 1884 and the Public Health (Members and Officers) Act 1885 shall apply and the Joint Board shall have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an Urban District Council under the same sections so far as the same are applicable viz.,—

Of the Act :—

Sections 122 123 131 and 132 relating to infectious diseases and hospitals.

Sections 173 and 174 (except sub-section 3) relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting of lands.

Sections 179 to 181 relating to arbitration.

Sections 192 to 197 and Sections 205 and 206 (except so much of Section 206 as requires the publication in a local newspaper of the annual report) relating to officers provision of offices and conduct of business of local authorities.

[5 EDW. 7.] *Local Government Board's* [Ch. cxi.]
Provisional Orders Confirmation (No. 17) Act, 1905.

Sections 245 247 (as amended by the District Auditors Act 1879) 249 A.D. 1905.
 and 250 relating to audit. *Enfield and*

Sections 251 253 and 254 and Sections 258 to 263 and 265 to 267 *Edmonton*
 and Section 269 as amended by the Summary Jurisdiction Act 1884 *Order.*
 relating to legal proceedings.

Section 298 as to costs of Provisional Orders.

Sections 306 to 309 including miscellaneous provisions.

Of the Public Health (Officers) Act 1884:—

47 & 48 Vict.
 c. 74.

Section 2.

Of the Public Health (Members and Officers) Act 1885:—

48 & 49 Vict.
 c. 53.

Section 2.

Art. XVI. The Joint Board shall for the purpose of the sections of the Act with regard to the "Prevention of epidemic diseases" be a local authority so as to enable the Local Government Board by any regulations under those sections to confer powers and to impose duties on the Joint Board and so far as regards any powers so conferred and any duties so imposed but nothing in this Order contained shall prevent the Local Government Board from imposing any duties by any regulations under the said sections on any Constituent Authority or affect the powers of any Constituent Authority so far as the same may be required to be exercised in pursuance of the said regulations.

Power of
 Local Govern-
 ment Board to
 make regula-
 tions for pre-
 vention of epi-
 demic diseases.

Art. XVII. Until a hospital provided by the Joint Board is ready for the reception of patients nothing in this Order shall take away abridge or prejudicially affect any power vested in any Constituent Authority with regard to the provision of a hospital or hospitals for the use of the inhabitants of their district.

Saving hospital
 powers of
 Constituent
 Authorities
 till hospital
 provided.

Art. XVIII. A copy of Section 132 of the Act shall be exhibited in a conspicuous place at the principal entrance of the hospital or hospitals.

Notice of provi-
 sions as to re-
 covery of cost
 of maintenance.

Art. XIX.—(1) All the expenses incurred by the Joint Board shall be defrayed out of a common fund to which shall be paid the sums received from the Constituent Authorities in pursuance of subdivision (2) of this Article and the sums recovered by the Joint Board from or repaid to the Joint Board by or for patients.

Expenses of
 Joint Board.

(2) Each Constituent Authority shall pay to the Joint Board the sum of thirty shillings in respect of each admission of a patient into a hospital of the Joint Board from the district of that Constituent Authority.

(3) To the common fund so far as the same is not provided by the aforesaid payments each Constituent Authority shall contribute in the proportion which the number of inhabitants in their Constituent District bears to the total number of inhabitants of the Constituent Districts and for

A.D. 1905. <i>Enfield and Edmonton Order.</i>	the purposes of this Article the number of inhabitants shall in each case be the number ascertained by multiplying the number of inhabited houses in the District at the Midsummer Day preceding the issue of precepts of the Joint Board for contribution from the Constituent Authorities by the average number of inhabitants of each inhabited house in the district as calculated from the number of inhabited houses and the number of inhabitants shown in the census report last preceding the issue of the precepts.
Calculation of contribution of Constituent Authority.	Art. XX.—(1) The clerk to the Joint Board shall within twenty-eight days after the Thirty-first day of March and the Thirtieth day of September in each year transmit to the clerk to each Constituent Authority an account showing the number of admissions of patients into the hospital from the district of the Authority during that half-year and the amount due from the Constituent Authority in respect of those admissions. (2) The amount shown by the said account to be due shall be paid by the Constituent Authority from whose district the said patients have been received into the hospital and shall be included in the precepts which the Joint Board issue to the Constituent Authorities respectively under Section 284 of the Act stating the sums to be contributed by the Constituent Authorities towards the common fund of the district and in case of default shall be recovered in like manner as the sums to be contributed towards the said common fund.
Inspection of accounts.	Art. XXI. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.
Auditor's report and abstract of accounts.	Art. XXII. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority.
Power of Local Government Board to adapt provisions of Order on alterations of Constituent Districts.	Art. XXIII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any repeal or alteration is made in the law affecting the United District or the Joint Board or a Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board then and in every such case the Local Government Board may by order to be published as they shall direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.
Settlement of differences.	Art. XXIV. In case of difference respecting any matter arising out of the provisions of this Order the difference except in any case otherwise herein provided for shall be referred to and be settled by arbitration in the manner

[5 EDW. 7.] *Local Government Board's* [Ch. cxi.]
Provisional Orders Confirmation (No. 17) Act, 1905.

provided by the Act and the provisions of the Act shall with the necessary modifications apply as if the Joint Board or a Constituent Authority as the case may be were a party within the meaning of those provisions. A.D. 1905.
*Enfield and
Edmonton
Order.*

Art. XXV. This Order may be cited as the Enfield and Edmonton Joint Hospital Order 1905. Short title.

The SCHEDULE above referred to.

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Urban District of Enfield.	The Urban District Council of Enfield.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Urban District Council.	3
The Urban District of Edmonton.	The Urban District Council of Edmonton.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Urban District Council.	3

Given under the Seal of Office of the Local Government Board this
Twenty-fourth day of May One thousand nine hundred and five.

(L.S.)

G. W. BALFOUR President.

S. B. PROVIS Secretary.

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

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